

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Investigation No. 337-TA-563

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**ISSUANCE OF A LIMITED EXCLUSION ORDER AGAINST RESPONDENT FOUND
IN DEFAULT; TERMINATION OF INVESTIGATION**

AGENCY: U.S. International Trade Commission.

ACTION: Notice.

SUMMARY: Notice is hereby given that the U.S. International Trade Commission has issued a limited exclusion order against the respondent found in default in the above-captioned investigation and has terminated the investigation.

FOR FURTHER INFORMATION CONTACT: Clint Gerdine, Esq., Office of the General Counsel, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone (202) 708-5468. Copies of non-confidential documents filed in connection with this investigation are or will be available for inspection during official business hours (8:45 a.m. to 5:15 p.m.) in the Office of the Secretary, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone (202) 205-2000. General information concerning the Commission may also be obtained by accessing its Internet server at <http://www.usitc.gov>. The public record for this investigation may be viewed on the Commission's electronic docket (EDIS) at <http://edis.usitc.gov>. Hearing-impaired persons are advised that information on this matter can be obtained by contacting the Commission's TDD terminal on (202) 205-1810.

SUPPLEMENTARY INFORMATION: The Commission instituted this investigation on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corporation ("Roadmaster") of Eatontown, New Jersey. The complaint, as amended and supplemented, alleges violations of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, in the importation into the United States, the sale for importation, and the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Design Patent No. D469,730; U.S. Trademark Registration No. 2,594,538; and U.S. Copyright Registration No. VA-1-261-495. The complaint further alleges the existence of a domestic

industry. The Commission's notice of investigation names Sinochem Ningbo, Ltd. ("Sinochem"), of Ningbo, China, as the only respondent.

The administrative law judge ("ALJ") issued an initial determination on July 12, 2006, finding Sinochem in default, because the respondent failed to reply to the complaint or notice of investigation, and also failed to reply to a show cause order issued by the ALJ on May 24, 2006. The Commission declined to review the ALJ's determination that the respondent Sinochem defaulted.

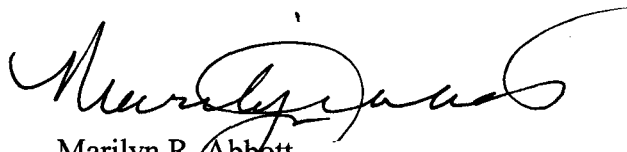
On August 23, 2006, the Commission issued a notice requesting briefing on the issues of remedy, the public interest, and bonding relating to the default finding of unlawful importation and sale of infringing products by Sinochem. 71 *Fed. Reg.* 51210 (Aug. 29, 2006). Complainant submitted a brief along with a proposed order on September 5, 2006. The Commission investigative attorney ("IA") also submitted a brief along with a proposed order on September 6, 2006, and further submitted a reply brief on September 13, 2006. The Complainant chose not to file a reply brief.

Having examined the record of this investigation, including the submissions of the parties, the Commission has determined that each of the statutory requirements of section 337(g)(1), 19 U.S.C. § 1337(g)(1), has been met with respect to defaulting respondent Sinochem. Accordingly, pursuant to section 337(g)(1), 19 U.S.C. § 1337(g)(1) and Commission Rule 210.16(c), 19 C.F.R. § 210.16(c), the Commission presumed the facts alleged in the complaint to be true. The Commission determined that the appropriate form of relief in this investigation is a limited exclusion order prohibiting the unlicensed entry of portable power stations and packaging therefor covered by U.S. Design Patent No. D469,739; U.S. Trademark Registration No. 2,594,538; or U.S. Copyright Registration No. VA-1-261-495 that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns.

The Commission further determined that the public interest factors enumerated in section 337(g)(1), 19 U.S.C. § 1337(g)(1), do not preclude issuance of the limited exclusion order. Finally, the Commission determined that the amount of bond to permit temporary importation during the Presidential review period, under 19 U.S.C. § 1337(j), shall be in the amount of 100 percent of the entered value of the infringing imported portable power stations and packaging therefor. The Commission's order was delivered to the President and the United States Trade Representative on the day of its issuance.

The authority for the Commission's determination is contained in section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, and in section 210.16(c) of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.16©.

By order of the Commission.

A handwritten signature in black ink, appearing to read 'Marilyn R. Abbott', with a large, stylized flourish extending from the end of the signature.

Marilyn R. Abbott
Secretary to the Commission

Issued: November 9, 2006

**UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.**

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Inv. No. 337-TA-563

LIMITED EXCLUSION ORDER

The Commission instituted this investigation on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corp. of Eatontown, New Jersey. 71 *Fed. Reg.* 13166 (March 14, 2006). The complaint, as supplemented, alleges violations of section 337 of the Tariff Act of 1930, as amended, in the importation into the United States, sale for importation, and sale within the United States after importation of certain portable power stations and packaging therefor by reason of: (1) infringement of U.S. Design Patent No. D469,739 (“the ‘739 patent”); (2) infringement of U.S. Trademark Registration No. 2,594,538 (“the ‘538 mark”); and (3) infringement of U.S. Copyright Registration No. VA-1-261-495 (“the ‘495 copyright”). The complaint further alleges the existence of a domestic industry. The Commission’s notice of investigation names Sinochem Ningbo, Ltd. (“Sinochem”), of Ningbo, China, as the respondent.

The presiding administrative law judge (“ALJ”) issued an initial determination on July 12, 2006, finding the respondent in default, because the respondent did not reply to the complaint or notice of investigation, and because the respondent did not reply to a show cause order issued by the ALJ on May 24, 2006. The Commission declined to review the ALJ’s determination that respondent Sinochem, the only respondent named in the investigation, defaulted. Roadmaster seeks relief limited to Sinochem. Since all of the requirements of 19 U.S.C. § 1337(g)(1) are satisfied, the Commission may presume that the facts alleged in the complaint are true and issue an exclusion from entry order and/or a cease and desist order.

Having reviewed the record in this investigation, including the written submissions of the parties, the Commission has made its determination on the issues of remedy, the public interest, and bonding. The Commission has determined that the appropriate form of relief is a limited exclusion order prohibiting the unlicensed entry of infringing portable power stations and packaging therefor that are covered by one or more of the ‘739 patent, the ‘538 mark, and the ‘495 copyright, and that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem. The Commission has also determined that the public interest factors enumerated in 19 U.S.C. § 1337(g)(1) do not preclude issuance of the limited exclusion order, and that the bond during the Presidential review period shall be in the amount of 100% of the entered value

of the portable power stations and packaging therefor that are subject to this Order.

Accordingly, the Commission hereby **ORDERS** that:

1. Portable power stations and packaging therefor that infringe one or more of the '739 patent, the '538 mark, and the '495 copyright,¹ that are manufactured abroad and/or imported by or on behalf of Sinochem, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns, shall be excluded from entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, for the remaining term of the patent and copyright, or until such date as the trademark is abandoned, canceled, or rendered invalid or unenforceable, except under license of the patent, copyright or trademark owner or as provided by law.

2. Products that are excluded by paragraph 1 of this Order are entitled to entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, under bond in the amount of 100% of the entered value pursuant to subsection (j) of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337(j), from the day after this Order is received by the United States Trade Representative as delegated by

¹ Copies of the registered design patent, trademark, and copyright are attached hereto.

the President, 70 *Fed. Reg.* 43251 (July 21, 2005), and until such time as the United States Trade Representative notifies the Commission that this action is approved or disapproved but, in any event, not later than sixty (60) days after the date of receipt of this action.

3. In accordance with 19 U.S.C. § 1337(l), the provisions of this Order shall not apply to portable power stations and packaging therefor that are imported by and for the use of the United States, or imported for, and to be used for, the United States with the authorization or consent of the Government.

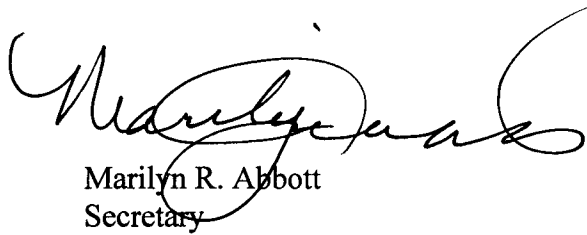
4. Complainant Roadmaster shall file a written statement with the Commission, made under oath, each year on the anniversary of the issuance of this Order stating whether they continue to use the aforesaid trademark in the United States in connection with portable power stations and packaging therefor and whether the aforesaid trademark has been abandoned, canceled, or rendered invalid or unenforceable.

5. The Commission may modify this Order in accordance with the procedures described in Rule 210.76 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.76.

6. The Secretary shall serve copies of this Order upon each party of record in this investigation and upon the Department of Health and Human Services, the Department of Justice, the Federal Trade Commission, and U.S. Customs and Border Protection.

7. Notice of this Order shall be published in the *Federal Register*.

By Order of the Commission.



Marilyn R. Abbott
Secretary

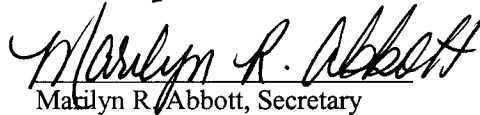
Issued: November 9, 2006

**CERTAIN PORTABLE POWER STATIONS AND PACKAGING
THEREFOR**

337-TA-563

CERTIFICATE OF SERVICE

I Marilyn R. Abbott, hereby certify that the attached **ISSUANCE OF LIMITED EXCLUSION ORDER AGAINST RESPONDENT FOUND IN DRFAULT; TERMINATION OF INVESTIGATION** has been served on upon the Commission Investigative, David O. Lloyd, Esq., and all parties via first class mail and air mail where necessary on November 13, 2006.



Marilyn R. Abbott, Secretary
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20436

ON BEHALF OF COMPLAINANT
ROADMASTER (USA) CORPORATION:

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